# COMMERCIAL LEASE AGREEMENT

Lantern Industrial Park | Grand Rapids, MI

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| **Landlord** | Lantern Industrial Park Owner LLC |
| **Tenant** | Oakleaf Freight Lines |
| **Premises** | Suite 42420, Lantern Industrial Park |
| **Lease Date** | November 27, 2024 |
| **Term** | 4 years |

**1. Premises.** Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Lantern Industrial Park, 4385 Quarry Street, Grand Rapids, MI 96976. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**2. Term.** The term of this Lease shall be 4 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**3. Base Rent.** Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

**4. Additional Rent and Operating Expenses.** Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**5. Security Deposit.** Upon execution, Tenant shall deposit with Landlord a security deposit equal to 42 months of Base Rent, to be held without interest. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**6. Use.** The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**7. Maintenance and Repairs.** Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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# Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

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Lantern Industrial Park Owner LLC

By: Daniel Zimmerman Title: Manager Date: 11/27/2024

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Oakleaf Freight Lines

By: Daniel Alvarez Title: Managing Member Date: 11/27/2024

## Exhibit A - Property

Lantern Industrial Park, 4385 Quarry Street, Grand Rapids, MI 96976. Parcel containing approximately 30.28 acres, together with all improvements thereon.

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